

all facts are accepted as true and are given a liberal construction at this stage of litigation. (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Therefore, the Court denies Defendant's motion for judgment on the pleadings as to Plaintiff's Complaint, without prejudice to Defendant re-filing a motion for judgment on the pleadings should the California Supreme Court affirm *K.C.*

Ruling

The Court **DENIES** Defendant's motion for judgment on the pleadings, without prejudice to Defendant re-filing a motion for judgment on the pleadings should the California Supreme Court affirm *K.C. v. Cty. of Merced* (2025) 109 Cal.App.5th 606, review granted June 5, 2025, S290435.

5. 9:00 AM CASE NUMBER: C24-00262
CASE NAME: THAYDRA JOHNESE VS. MOHR GREEN ASSOCIATES L.P. D/B/A HIDDEN CREEK TOWNHOMES
HEARING ON SUMMARY MOTION
FILED BY: MOHR GREEN ASSOCIATES L.P. D/B/A HIDDEN CREEK TOWNHOMES
TENTATIVE RULING:

Before the Court is Defendants Mohr Green Associates L.P. dba Hidden Creek Townhomes ("Mohr Green") and Ray, Douglas, Ann & Patrick, Inc., dba RPM Company's ("RPM") Motion for Summary Judgment, or in the Alternative, Summary Adjudication. The Complaint alleges two causes of action: (1) Negligence, and (2) Premises Liability.

Defendants' Request for Judicial Notice is **granted**. (Evid. Code § 452 (d).)

For the following reasons, Defendants' Motion for Summary Judgment is **granted**.

Factual Background

This matter relates to an incident that occurred on July 7, 2023. (UMF 1.) On that date, Plaintiff was employed by Signal 88 Northbay Security Service (Signal 88) as a Mobile Security Officer ("MSU"). (UMF 3.) As part of her employment, Plaintiff was walking through the property known as Hidden Creek Townhomes, in Concord, California ("Property"). (UMF 1, 3, 8.) While making her patrol, Plaintiff observed a grate in her path of travel. (UMF 20.) Because she did not want to step on the grate, she stepped onto a pile of leaves adjacent to the grate. (*Ibid.*) Upon stepping on the leaves, Plaintiff slipped and fell. (*Ibid.*)

At the time of the incident, Defendant Mohr Green owned the Property and Defendant RPM was the property manager. (UMF 5-6.) Signal 88 was contracted by RPM, on behalf of Mohr Green, to provide security services for the Property. (UMF 4, 7.)

Mohr Green and RPM did not directly employ Plaintiff at any time, including on the date of the incident. (UMF 10.) Mohr Green and RPM did not train Plaintiff for her job, nor did they provide her with any equipment. (UMF 12-13, Johnese Decl. ¶ 4.) In addition, Mohr Green and RPM did not direct

the manner in which Plaintiff performed her duties as a security guard on the Property. (UMF 11.) Plaintiff's own declaration makes clear: "No one from Mohr Green or RPM directed how I performed by patrol." (Johnese Decl. ¶ 4.) Instead, her employer Signal 88 provided all training and equipment to Plaintiff, but for the flashlight which Plaintiff supplied on her own. (UMF 14-16.)

Mohr Green and RPM had no input as to how Plaintiff would perform her patrols of the Property. (UMF 17.) There were no known witnesses to the incident. (UMF 18.) Plaintiff claims the insufficient lighting, tree branches, and grate contributed to the dangerous condition of the Property. (UMF 19.)

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment "must make a prima facie showing, i.e., 'he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not— otherwise, *he* would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact.'" (*Ibid.* quoting *Aguilar*, supra, 174 Cal.App.4th at 851.)

Initial Considerations

Separate Statement

Initially, the moving party's separate statement "must be in the two-column format" specified in the Rules of Court. (Cal. R. Ct. 3.1350 (d)(3).) The first column must state the "undisputed material facts in the first column ***followed by*** the evidence that establishes those undisputed ***facts in that same column.***" (*Ibid.*) Subdivision (h) of the rule provides a picture of a separate statement and opposition thereto should appear:

ISSUE 1—THE FIRST CAUSE OF ACTION FOR NEGLIGENCE IS BARRED BECAUSE PLAINTIFF EXPRESSLY ASSUMED THE RISK OF INJURY

Moving Party's Undisputed Material Facts and Alleged Supporting Evidence:

1. Plaintiff was injured while mountain climbing on a trip with Any Company USA. Plaintiff's deposition, 12:3–4.
2. Before leaving on the mountain climbing trip, plaintiff signed a waiver of liability for acts of negligence. Smith declaration, 5:4-5; waiver of liability, Ex. A to Smith declaration.

Opposing Party's Response and Evidence:

Undisputed.

Disputed. Plaintiff did not sign the waiver of liability; the signature on the waiver is forged. Jones declaration, 3:6–7.

Defendants' Separate Statement fails to follow this requirement, instead listing the material fact in first column, then the evidence in support in a second column, not in the same column as the material fact – as required by the Rule. This is a minor inconvenience.

Plaintiff's opposition to the separate statement likewise fails to follow the correct format – but leads to a large inconvenience to the Court due to the numerous failures to follow procedure.

First, the opposition separate statement must be in a two-column format wherein the first column sets out the moving party's undisputed facts set out "verbatim on the left side of the page, ***below which must be set out the evidence said by the moving party to establish that fact, complete with the moving party's references to exhibits.***" (Cal. R. Ct. 3.1350 (f)(1).)

Plaintiff's opposition uses a three-column format which fails to include ***any*** of this information. Instead, the first column merely identifies the UMF by number:

Defense UMF No.	Plaintiff's Response (Admit / Deny / Dispute)	Supporting Evidence Citation
UMF 1	Admit.	Undisputed for purposes of this motion.
UMF 2	Admit.	Undisputed.
UMF 3	Admit.	Undisputed.
UMF 4	Dispute (in part). Plaintiff admits a written Security-Services Agreement was executed on or about February 1, 2019; Plaintiff disputes any implication that the	Percy Decl., Exh. A (Security-Services Agreement), § 18; Johnese Decl. ¶¶ 3-4.

Second, on the right side the opposing party must "unequivocally state whether that fact is '***disputed***' or '***undisputed***.'" (Cal. R. Ct. 3.1350(f)(2).) Instead, in the second column Plaintiff indicates that she "admit[s]" some facts, 'disputes,' 'disputes in part,' or 'disputes as to characterization and legal significance,' other facts, and in one instance, notes the fact is undisputed (UMF 20). There is then a third column where Plaintiff appears to explain her position, sometimes including citations to evidence and objections.

In addition to the above, Plaintiff's Separate Statement appears to misidentify what UMF is being responded to – likely due to the failure to indicate in the first column the fact and evidence as set

forth by the moving Defendants. For example, UMF 18 states: “There are no known third-party witnesses to the accident.” Plaintiff’s Response to UMF 18 states this is “[d]isputed as to characterization and legal significance,” and that this “fact does not establish that the hazard was ‘patent’ or that Defendants are not liable.” (Opp. to UMF 18.) It then goes on to discuss issues completely unrelated to the facts at issue – the lack of a third-party witness. The evidence cited in support also fails to address that fact.

Plaintiff’s response to UMF 19, however, states that it is: “Undisputed as to the absence of independent third-party witnesses present at the moment of the fall,” then goes on at length discussing her position thereto. The problem is UMF 19 does not relate to the absence of a third-party witness. UMF 18 does.

Likewise, UMF 20 describes how the incident occurred, citing Plaintiff’s deposition testimony describing the event. Plaintiff’s Opposition indicates that it is undisputed that Plaintiff received workers’ compensation benefits from Signal 88 with exposition explaining why Plaintiff believes that fact is irrelevant. The response does not match the UMF at issue.

The failure of the parties, especially Plaintiff, to properly format their separate statements not only violates Rule 3.1350 but also made the Court’s work significantly more time-consuming. Plaintiff’s failure to have her opposition separate statement properly correspond to the Defendant’s separate statement significantly added to the Court’s work.

“The separate statement ‘provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.’” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (quoting *Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74.) “[T]rial courts have the inherent power to strike proposed ‘undisputed facts’ that fail to comply with statutory requirements and that are formulated so as to impede rather than aid an orderly determination whether the case presents triable material issues of fact.” *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 106.)

While the Court will not strike the Parties’ separate statements, the Court cautions the attorneys to follow proper procedure in the future.

Analysis

As noted above, the Complaint asserts two causes of action against Defendants: (1) Negligence, and (2) Premises Liability. Defendants contend both causes of action are barred by the so-call “Privette Doctrine.”

A. The Privette Doctrine Generally

In the context of premises liability and negligence claims by an employee of an independent contractor hired by an owner of the premises or general contractor on a development project, the *Privette* doctrine, set forth in *Privette v. Superior Court* (1993) 5 Cal.4th 689, 693, creates a presumption against imposing liability on the owner or general contractor for injuries to the independent contractor’s employee. (*Sandoval v. Qualcomm Incorporated* (2021) 12 Cal.5th 256, 264.)

Under the *Privette* doctrine: “A person or entity hiring an independent contractor (a ‘hirer’) ordinarily delegates to that independent contractor all responsibility for the safety of the contractor’s workers.” (*Ibid.*) A hirer for purposes of the *Privette* doctrine includes a landowner. (*Toland v. Sunland Housing Group, Inc.* (1998) 18 Cal. 4th 253, 269–270 [hirer under *Privette* can be a landowner, general contractor, or any other entity that hires an independent contractor].)

The California Supreme Court later expounded on the doctrine in *SeaBright Ins. Co. v. US Airways, Inc.* (2011) 52 Cal.4th 590: “By hiring an independent contractor, the hirer implicitly delegates to the contractor any tort law duty it owes *to the contractor’s employees* to ensure the safety of the specific workplace that is the subject of the contract.” (*Id.* at 594 [italics in original.]) As the Court stated in *Sandoval*: “Over time, we’ve recast our primary rationale for the *Privette* doctrine in terms of delegation rather than workers’ compensation. Because we typically expect contractors to perform the contracted work more safely than hirers, we have endorsed a ‘strong policy’ of presuming that a hirer delegates all control over the contracted work, and with it all concomitant tort duties, by entrusting work to a contractor. [Citation omitted.]” (*Sandoval*, supra, 12 Cal.5th at 270.)

Here, Signal 88 was hired by the Defendants to perform security services at the Property. Plaintiff was employed by Signal 88 to perform security services at various locations including the Property. Signal 88 trained Plaintiff and provided her with all equipment (but for her personal flashlight) used as a security guard at the Property. Plaintiff’s injuries arose while she was performing a patrol of the Property. This activity was within the course and scope of her employment with Signal 88.

Plaintiff argues that the agreement between Signal 88 and Defendants “does not expressly state that Defendants delegated responsibility for grounds maintenance, debris removal, grate maintenance, or lighting.” That misses the point. Plaintiff was not asked to perform, nor was she performing, any of those activities at the time of her injury. She was performing a security patrol as part of her duties with Signal 88.

Plaintiff also argues that the agreement between Defendants and Signal 88 required Defendants to advise Signal 88 of hazards at the location. There is no evidence, however, that Defendants were aware of any hazards.

Based on the above, Plaintiff’s claims fall within the *Privette* Doctrine and are presumptively barred unless Plaintiff can show they fall within an exception to the *Privette* Doctrine.

B. Exceptions to the *Privette* Doctrine

“[T]he *Privette* doctrine has its limits. Sometimes a hirer intends to delegate its responsibilities to the contractor in principle but, by withholding critical safety information, fails to effectively delegate its responsibilities in practice; or a hirer delegates its responsibilities only partially by retaining control of certain activities directly related to the contracted work.” (*Sandoval*, supra, 12 Cal.5th at 271.) In those circumstances, the *Privette* presumption “gives way to the two recognized exceptions that apply where delegation is either ineffective or incomplete.” (*Ibid.*) One exception is set forth in *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and arises based on the hirer’s “retained control,” and the other in *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659 applies to a landowner-hirer when there is

a concealed dangerous condition on the property. (*Ibid.*)

1. The Hooker/McKown Exception

The cases *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and *McKown v. Wal-Mart, Inc.* (2002) 27 Cal.4th 219 were decided essentially as companion cases. (*McKown, supra*, 27 Cal.4th at 222.) The Court in *McKown* summarized the holdings of the two decisions and the extension of the *Hooker* exception to equipment provided by the hirer:

In *Hooker v. Department of Transportation* (2002) 27 Cal. 4th 198 (*Hooker*), a companion to this case, we held that a hirer of an independent contractor is not liable to an employee of the contractor ***merely because the hirer retained control over safety conditions at a worksite***, but that a hirer is liable to an employee of a contractor ***insofar as a hirer's exercise of retained control affirmatively contributed to the employee's injuries***. In this case, we hold that a hirer is liable to an employee of an independent contractor insofar as ***the hirer's provision of unsafe equipment affirmatively contributes to the employee's injury***.

(*Id.* at 222 emphasis added.)

To meet the *Hooker/McKown* exception, Plaintiff must put forth evidence that Defendants retained control and its retained control affirmatively contributed to his injuries. (*Sandoval, supra*, 12 Cal.5th at 278.) "A hirer's mere authority to prevent or correct a contractor's unsafe practices (retained control) does not, without more, limit the contractor's delegated control over the work. But to the extent that the hirer exerts influence over the contracted work such that the contractor is not entirely free to perform the work in the contractor's own manner (actual exercise), the hirer does limit the contractor's delegated control." (*Ibid.*) The Court in *Sandoval* explained that "retained control" under the *Hooker* exception is not general control over the property or project but means that the hirer "retains a sufficient degree of authority over ***the manner of performance*** of the work entrusted to the contractor. (Emphasis added.)" (*Id.* at 274-276 [citing authorities rejecting general control over the premises as retained control to support hirer liability to employees of subcontractors].)

Actual exercise of the retained control "requires that the hirer in fact 'involve itself, such as through direction, participation, or induced reliance. [Citation omitted.]" (*Sandoval, supra*, 12 Cal.5th at 276.) "[T]he affirmative contribution requirement can be satisfied ***only if*** the hirer in some respect induced – not just failed to prevent – the contractor's injury-causing conduct." (*Id.* at 277 citing examples.) Active participation is sufficient but "is not necessarily the only way" this requirement can be met. (*Id.* at 276, fn. 6.) The Court also explained that "neither 'actual exercise' nor 'affirmative contribution' requires that the hirer's *negligence* (if any) consist of an affirmative act." (*Id.* at 277.) The theory underlying the *Hooker* exception is that the delegation of tort duties to the independent contractor is "partial" or "incomplete" because the hirer retains control over some aspect of the work. (*Id.* at 271.) Plaintiff was injured when she slipped and fell while performing a security patrol at the Property.

There is no evidence that Defendants contributed to Plaintiff's injuries. It is undisputed that Signal 88 employed Plaintiff and provided all her training. Defendants did not have any control over the safety measures Signal 88 implemented, nor any control as to how Plaintiff performed her work. As Plaintiff's own declaration explains: "No one from Mohr Green or RPM directed how I performed my patrol." (¶ 4.)

Defendants retain control over Plaintiff's work or provide her with tools or equipment for her job. Instead, Signal 88 provided all her equipment but for the flashlight, which Plaintiff provided on her own. In other words, there is no evidence that Defendants "retained control over safety conditions at the worksite," much less that any actions by Defendants "affirmatively contributed to" Plaintiff's injuries.

There is no evidence to support this exception to the *Privette* Doctrine applies.

2. The Kinsman Exception

Under the *Kinsman* exception which applies when the hirer is also the landowner, the landowner-hirer may owe tort duties to the employee of a subcontractor if the owner-hirer fails to disclose to the contractor a concealed hazard on the property. (*Sandoval, supra*, 12 Cal.5th at 271-272.) Under the *Kinsman* exception, "a landowner who hires an independent contractor may be liable if the landowner knew, or should have known, of a concealed hazard on the property that the contractor did not know of and could not have reasonably discovered, and the landowner failed to warn the contractor of the hazard." (*Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 38 [citing *Kinsman, supra*, 37 Cal.4th at 664].)

For purposes of *Kinsman*, a "concealed hazard" can be one where the existence of the hazard is concealed, or where the hazard "is in some way apparent but whose dangerousness is concealed. [Citation omitted.]" (*Sandoval, supra*, 12 Cal.5th at 272.) The concealed hazard under the *Kinsman* exception must be "a hazard that the hirer either knows or reasonably should know exists, and that the contractor does not know exists and could not reasonably discover without the hirer's disclosure. [Citation omitted.]" (*Ibid.*) As the Court recently explained its holding in *Kinsman*: "We based our holding on the premises liability rule that a landowner has a duty to warn a visitor of a dangerous condition on the property '[s]o that [the visitor], like the host, will be in a position to take special precautions when [the visitor] comes in contact with it.'[]" [Citations, internal quotation marks omitted.]" (*Gonzalez, supra*, 12 Cal.5th at 43.)

There is no evidence to support a finding that there was a concealed hazard that Defendants were aware of and did not disclose. To begin with, there is no evidence that Defendants were aware of the alleged conditions of the Property – *i.e.* the insufficient lighting and existence of the leaves on the ground. Even if Defendants were aware of those conditions, there is no evidence that Signal 88 did not know they existed nor that it "could not reasonably discover with [Defendant's] disclosure." (*Sandoval, supra*, 12 Cal.5th at 272.)

Plaintiff's own declaration indicates that the alleged 'dangerous condition' was reasonably discoverable:

As I walked along the walkway, I came upon a metal grate set in the concrete. Leaves and branches covered the grate and the ground around it. Because I did not want to step on the grate, I stepped onto a pile of leaves next to it. The leaves gave way and I slipped and fell.

“Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.” (*Kinsman*, supra, 37 Cal.4th at 673.) The grate and leaves were obvious according to Plaintiff’s own statement – since she clearly saw them. There is also no evidence that Plaintiff was required to take the path she took to complete her patrol. If she saw what looked to be a ‘dangerous condition’ in the path before her she could have taken a different route to avoid the hazard. There is no evidence indicating that Defendants required Plaintiff to walk down this particular path as part of her patrol. Instead, as noted above, Plaintiff declares that neither Defendant “directed how I performed my patrol.”

There is no evidence to support this exception to the *Privette* Doctrine applied.

Evidentiary Issues

Plaintiff’s Objections

The Court is concerned that several of Plaintiff’s objections are completely without merit in that they are to facts which Plaintiff herself admits in her declaration. For example, objection 2 is to the statement that “Mohr Green and RPM did not provide any directions to Thaydra Johnese on how she was to perform her work....” In her declaration, Plaintiff states: “No one from Mohn Green or RPM directed how I perform my patrol.” (¶ 4.)

Likewise, objections 3 and 4 are to statements indicating that Defendants did not provide Plaintiff with any training or equipment. Again, Plaintiff’s declaration states: “Signal 88, not Mohr Green or RPM, trained me, set my assignments, and provided the equipment I used on patrol.” (¶ 4.)

Counsel is reminded of its duty of candor to the Court and should not make baseless objections to evidence that is not in dispute. (See e.g. *Ambriz v. Kelegian* (2007) 146 Cal.App.4th 1519, 1527-28 finding that raising a lack of authentication objection to “an excerpt from the same deposition defendants themselves relied upon in their motion is *disingenuous*,” unless it can be shown the excerpt is not from the transcript.”)

Objections to Percy Decl.

Objection 1: Overruled.

Objection 2: Overruled.

Objection 3: Overruled.

Objection 4: Overruled.

Objection 5: Overruled.

Objection 6: Overruled.

Objection to UMFs

Initially, Plaintiff’s objections violation California Rules of Court, Rule 3.1354(b) by objecting to the undisputed material facts themselves, and not the actual evidence underlying those UMFs. They must be overruled on that basis alone. Substantively, they are overruled as well.

Conclusion

Based on the above, Defendant's Motion for Summary Judgment is **granted**.

6. 9:00 AM CASE NUMBER: C24-01532

CASE NAME: LUIS DEL RIO ROSALES VS. WHOLESALE 209, LLC

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**

FILED BY: DEL RIO ROSALES, LUIS A.

TENTATIVE RULING:

Plaintiff Luis del Rio Rosales moves for preliminary approval of his class action and PAGA settlement with defendant Wholesale 209, LLC.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on June 12, 2024, raising PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Plaintiff included class action claims based on similar allegations.

The settlement would create a gross settlement fund of \$375,000. The class representative payment to plaintiff would be \$7,500. Attorney's fees would be \$125,000 (33 1/3% of the settlement). Litigation costs would not exceed \$20,000. The settlement administrator's costs will not exceed \$2,900. PAGA penalties would be \$20,000, resulting in a payment of \$15,000 to the LWDA and \$5,000 to the aggrieved employees. The net amount paid directly to the class members would be about \$211,050 (NSF. The fund is non-reversionary. Based on the estimated class size of 88, the average net payment for each class member is approximately \$2,398.30. La Raza Centro Legal would be the *cy pres* recipient.

The proposed settlement would certify a class of all current and former hourly-paid or non-exempt employees employed by Defendant in California during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The Agreement provides that if the total value of uncashed settlement checks equals 20% or more of the NSF, the Settlement Administrator will conduct one second distribution on a proportional basis to participating Settlement Class Members who negotiated their initial checks. If the total value of uncashed checks is less than 20% of the NSF, the remaining balance will be distributed to the *cy pres* recipient. Any funds remaining unclaimed after the second distribution, if any, will also be distributed to *cy pres*.

The settlement contains release language covering all claims "arising out of the facts, circumstances,